

23STCV268839 23STCV268839

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-25

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Case Number: 23STCV268839 Hearing Date: August 25, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: Tuesday, August 25, 2026

CASE NUMBER: 23STCV268839

CASE NAME: Regency

Centers, L.P. v. Alankar Verma, et

al.

MOVING

PARTY: Judgment Debtors Alankar Verma and Sunita Verma

OPPOSING PARTY: Judgment Creditor Creditors

Adjustment Bureau, Inc.

PROCEEDING: Claim of Exemption

RULING SUMMARY: As community property, Ms. Verma's assets are subject to levy to enforce the Judgment against Mr. Verma.

Nothing submitted by Judgment Debtors is sufficient to change the Court's prior ruling. The Claim of Exemption is denied, except for the amount exempt without claim of exemption pursuant to Code of Civil Procedure Section 704.220(a).

Background

On May 11, 2026, the Court issued the following Ruling on Judgment

Debtors Claim of Exemption:

Judgment

Debtor Alankar Verma's request to exempt his deposit accounts and IRA accounts is denied, except for the amount exempt without claim of exemption pursuant to Code of Civil Procedure Section 704.220(a). The claim to exempt wages is denied as moot.

The Court continued the hearing to August 18, 2026, subsequently continued to August 25, 2026, as to the Claim of Exemption with regard to judgment debtor Sunita Verma. The Court ordered the parties to submit briefing regarding Ms. Verma no later than five court days before the hearing.

On August 18, 2026, a Second Supplemental Declaration of Alankar Verma in Support of Claim of Exemption was filed. In the declaration, Mr. Verma states that he intends to retire at age 67 and is currently 62, and summarily states that his wife is financially dependent on him, and that their primary "income will be Social Security benefits, as we do not have other meaningful savings or readily available financial resources." (2nd Supp. Verma Decl. ¶ 2.)

On August 18, 2026, Judgment Creditor Creditors Adjustment Bureau, Inc. filed Judgment Creditor's Memorandum in Opposition to Claim of Exemption. Judgment Creditor noted that, pursuant to Family Code section 910(a) and Code of Civil Procedure section 694.020, Ms. Verma's assets are community property that is subject to the levy to enforce a judgment against Mr. Verma. Judgment Creditor also asserted that the evidence previously offered by Ms. Verma shows that her assets were earned or received during the Vermas' marriage and, therefore, under Family Code section 760, constitute community property. And, if and to the extent that Ms. Verma claims that any of her assets are separate property, she has not timely filed a Claim of Exemption to protect those assets from levy.

Claim of Exemption

I. Legal Standard

In its May 11, 2026

Ruling, the Court quoted at length the statutes applicable to a Claim of Exemption and the Claimant's burden of proof.

II. Discussion

In that Ruling, the Court also concluded

that Judgment Debtor Alankar has not presented clear evidence of what his monthly expenses, whether his take home pay is sufficient to cover these expenses, and whether his primary checking and savings account with Premier America should be exempt from the Judgment under Code of Civil Procedure Section 704.225. Judgment Debtor Alankar had the burden of proof on his claim of exemption, and the Court had previously continued the hearing on the claim of exemption to give him a further opportunity to offer evidence to sustain that burden. He had not done so; therefore, his claim of exemption was denied.

In regard to the IRA accounts, the Court founds and concluded:

"In

assessing whether a plan or account was principally or primarily designed and used for retirement purposes, courts are to look at the totality of the circumstances." (O'Brien v. AMBS Diagnostics, LLC (2019) 38 Cal.App.5th 553, 561.) Judgment Creditor asserts that because Alankar is not retired, the IRA accounts are not exempt. There is no evidence that Alankar exceeded the IRS IRA contribution limits to shield these funds from creditors. Alankar's contributions into these accounts predated the Judgment entered against him by decades. The fact that Alankar has not retired does not mean that purpose of these accounts is lost. Moreover, the fact that the funds from the IRA accounts have not been withdrawn supports the contention that he intends to rely on these funds for his retirement. Furthermore, there is no evidence that Alankar used the IRA account to finance his current lifestyle and the funds are no longer designated for a retirement purpose.

But

even if, as the Court finds, Alankar's IRA accounts are for the purposes of retirement, Alankar has not offered evidence to sustain his burden to show "necessary to provide for the support of the judgment debtor when the judgment debtor retires and for the support of the spouse . . . , taking into account all resources that are likely to be available for the support of the judgment

debtor when the judgment debtor retires.”

(Code Civ. Proc., § 704.115.) He

provided no evidence regarding when he intends to retire or what his monthly expenses and need for his own and his spouse's support in retirement. Again, the Court previously continued this hearing to give Alankar a further opportunity to provide evidence to sustain his burden of proof. He has not met that burden.

While Mr. Verma has now stated in his 2nd

Supplemental Declaration that he intends to retire in five years, the Court's

May 11, 2026 Ruling already made determinations as to Claim of Exemption and

did not invite further evidence from the Judgment Debtors. The Court only ordered further briefing as to

whether Mrs. Verma needs to file a third-party claim of exemption pursuant to Code

of Civil Procedure Section 720.110 et seq.

Judgment Debtors filed no further briefing.

Conclusion

As community property, Ms. Verma's

assets are subject to levy to enforce the Judgment against Mr. Verma. Nothing submitted by Judgment Debtors is sufficient to change the Court's prior ruling.

The Claim of Exemption is denied, except for the amount exempt without claim of exemption pursuant to Code of Civil Procedure Section 704.220(a).

Date: _____

William

E. Weinberger

Judge,

Los Angeles Superior Court